

21SMCV00498 21SMCV00498

County: los-angeles

Division: Civil Law and Motion

Department: 207

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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

September 10, 2026

CASE NUMBER

21SMCV00498

MOTION

Motion for Reconsideration

MOVING PARTY

Defendant Jake Seal

OPPOSING PARTY

Plaintiff Myriad Pictures, Inc.

BACKGROUND

This case arises from a dispute concerning the production and distribution of the fourth movie in the “Jeepers Creepers” franchise.

On June 18, 2024, Plaintiff Myriad Pictures, Inc. (“Plaintiff”) filed the operative Third Amended Complaint (“TAC”) against Defendants Infinity Films Holdings, LLC (“Infinity”); Michael Ohoven (“Ohoven”); Brandon Farm, LLC (“Brandon Farm”); Jake Seal (“Seal”); Screen Media Ventures, LLC (“SMV”); Chicken Soup for the Soul Entertainment, Inc. (“CSS”)[1]; Independent Frame, LLC (“Independent”); Orwo Film Distribution, LLC; PVS Studios, LLC (“PVS”); David Fannon (“Fannon”); Seth Needle (“Needle”); and the Estate Mark Damon (“Damon”), alleging five causes of action for (1) breach of contract; (2) breach of the implied covenant of good faith and fair dealing; (3) intentional interference with contractual relations; (4) fraudulent concealment; and (5) declaratory relief.

On February 24, 2022, Cross-Complainants Orwo Film Studios, LLC; Orwo Film Distribution, LLC (the “Orwo” Defendant above); PVS Studios, LLC; JCP4 IP, LLC; and Jake Seal (“Cross-Complainants”) filed the operative Second Amended Cross-Complaint against Plaintiff; Kirk D’Amico; Infinity; CSS; Ohoven; Brandon Farm; and SMV; alleging six causes of action as follows:

1.

Intentional Interference with Contract

2.

Intentional Interference with Prospective Economic Advantage

3.

Negligent Interference with Prospective Economic Advantage

4.

Equitable Indemnity

5.

Contribution

6.

Declaratory Relief

Essentially, Plaintiff and Cross-Complainants each allege they have contracts purporting to confer the exclusive rights to finance and distribute the same films, and they argue the opposing side interfered with their own contract to finance, produce, and distribute the films.

On May 28, 2025, the Court granted issue sanctions against Seal, the two Orwo entities, and PVS (the "Seal Parties"), holding:

The Court

hereby deems the allegations alleged in the Third Amended Complaint to be established with respect to the third cause of action for intentional interference with contractual relations against Defendants Seal, Orwo, and PVS and the fourth cause of action for fraudulent concealment against Defendant Seal. Defendants Seal, Orwo, and PVS shall be prohibited from opposing these claims against them, from raising defenses to these claims, or from introducing evidence or testimony in support of their own defenses to these claims.

(Minute Order, May 28, 2025.)

On February 24, 2026, the Court granted Myriad's motion for summary adjudication of the first, second, and third causes of action alleged in the Second Amended Cross-Complaint, finding, "both sides cannot have valid contracts for the same exclusive rights to finance and distribute the same films.

As such, if one party's contract is deemed valid, the other party's contract cannot be valid." (Minute

Order, Feb. 24, 2026 at p. 7.) Further, the

Court held, "by virtue of the issue sanctions order, Myriad's contract was deemed valid, and the Seal Parties' knowing offer to finance and distribute Jeepers Creepers Reborn improperly undercut Myriad's rights thereunder, causing Myriad to incur damages. As such, Seal's

agreement was wrongful, invalid, and/or unlikely to produce an economic advantage, and Myriad's interference thereof was not wrongful, but rather a lawful exercise of Myriad's rights." (Id.

at p.89.) Further, the Court noted that

the Seal Parties did not timely oppose the motion to create any triable issues of material fact. (Ibid.)

At the April 29, 2026 bench

trial, the Court further awarded Myriad economic damages in the amount of

\$2,117.905.

On July 27, 2026, the Court granted in part Plaintiff's unopposed motion for punitive damages, awarded punitive damages in the amount of \$3,388,648, and vacated Phase II of the non-jury trial.

Seal now moves for reconsideration of the Court's July 27, 2026 order pursuant to Code of Civil Procedure section 1008, subdivision (a). Plaintiff opposes the motion.

LEGAL

STANDARD - RECONSIDERATION

Under Code of Civil Procedure section 1008, subdivision (a), "[w]hen an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make an application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (Code Civ. Proc., § 1008, subd. (a).) Where the statutory requirements are met, reconsideration should be granted; upon reconsideration, however, the court may simply reaffirm its original order. (Corns v. Miller (1986) 181 Cal.App.3d 195, 202.)

REQUEST FOR JUDICIAL NOTICE

Seal requests judicial notice of the following:

1. United Kingdom Income Tax Act 2007, section 157, governing the requirement that an individual seeking Enterprise Investment Scheme relief subscribe for qualifying shares in the issuing company. A true and correct copy is attached as Exhibit 1.

2. United Kingdom Income Tax Act 2007,
section 181, governing the trading requirement applicable to the issuing
company. A true and correct copy is attached as Exhibit 2.

3. United Kingdom Income Tax Act 2007,
section 183, governing the requirement that the qualifying business activity be
carried on by the issuing company or a qualifying subsidiary. A true and
correct copy is attached as Exhibit 3.

4. HM Revenue & Customs Venture Capital
Schemes Manual, VCM8560, Example 3, constituting official guidance issued by HM
Revenue & Customs concerning application of the Enterprise Investment
Scheme requirements to film production businesses operating through a parent
company and wholly owned production subsidiary. A true and correct copy is
attached as Exhibit 4.

5. United Kingdom Data Protection Act 2018,
section 170, governing the knowing or reckless obtaining, disclosure,
procurement, or retention of personal data without the consent of the data
controller, subject to the statutory defenses and exceptions stated therein. A
true and correct copy is attached as Exhibit 5.

Courts may
take judicial notice of “the law of an organization of nations and of foreign
nations and public entities in foreign nations.” (Evid. Code, § 452, subd. (f).) Therefore, the Court takes judicial notice of
the above exhibits.

ANALYSIS

Seal first challenges the statements
in the July 27 order indicating the motion was unopposed. Specifically, Seal argues he did file
an opposition, but it was late.

Upon review of the record, the Court
notes that Seal apparently filed an opposition the afternoon of Friday, July
24. As it takes 3 to 5 court days for
electronically filed documents to appear on the Court’s docket, and tentative
rulings are generally posted at least 24 hours in advance of the hearing, the
opposition was not actually received by the Court before the posting of the

tentative ruling, which the Court ultimately adopted as the final order of the Court after noting “Defendant’s opposition filed on 07/24/2026 is untimely.” As such, the Court’s statement was accurate when written, and remained accurate, as clarified by the notation that the July 24, 2026 opposition was untimely.

The substance of Seal’s opposition argues that a UK tax law newly discovered by Seal’s counsel demonstrates that Seal could not have owned or financed Jeepers Creepers 4 or 5 in his individual capacity. Seal’s argument essentially rests on the same premise the Court rejected on credibility grounds at trial – namely, Seal sought to exculpate himself from any and all liability due to creative accounting practices, while refusing to provide straightforward answers about who did finance the franchise or how he personally pays for his own daily living expenses. Nor does Seal adequately explain why he failed to raise this UK tax law defense at trial or at any other point prior to the Friday afternoon before the hearing on Plaintiff’s motion for punitive damages.

Instead, Seal argues that he “learned of Plaintiff’s motion only three days before the hearing because counsel had not transmitted the motion or May 4 order,” implying that Seal’s counsel did not receive adequate notice of the motion for punitive damages. (Motion at p. 3.) However, the Siegelman declaration clarifies it was actually Seal’s counsel who failed to transmit the order and motion to his own client. (Siegelman Decl. ¶ 2.) Thus, there is no deficiency of notice warranting reconsideration of the July 27 order or consideration of the belated opposition.

Ultimately, neither counsel’s belated discovery of the UK tax law, nor counsel’s belated forwarding of case related documents or motions to his client constitute new facts, circumstances, or law warranting reconsideration.

CONCLUSION AND ORDER

For all the reasons stated above,
the Court denies Seal’s Motion for Reconsideration.

Seal shall provide notice of the
Court's ruling and file the notice with a proof of service forthwith.

DATED: September 10, 2026 _____/s/ _____

Michael
E. Whitaker

Judge
of the Superior Court

[1] Chicken Soup for the Soul Entertainment, Inc. and
Screen Media Ventures, LLC filed a Notice of Stay (Bankruptcy) on July 8, 2024,
but the Bankruptcy Court issued an order granting to Plaintiff relief from the
Automatic Stay. (See Notice of Order filed February 19, 2025.)